

Safety Threat Annex

Misconduct and No Action Following Reported Safety Threats

Case references

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217
Gloucestershire Police (June 2023) | Teton County Sheriff 2307-4269 |
Thames Valley Police (Andrew investigation, active)

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
Thames Valley Police — for coordination

Nadia Zahmoul

Litigant in Person

18 March 2026

Veritas Numquam Perit

Item	Detail
Subject	Three documented safety incidents reported to law enforcement — no action taken by MacDonald J following direct written notification while judgment was reserved
Source document	Letter to MacDonald J, 9 April 2024 — marked Confidential — transmitted while judgment reserved (18 April 2024)
Key dates	Incident 1: 9 June 2023; Incident 2: December 2023; Incident 3: 25 March 2024; Letter to MacDonald J: 9 April 2024; Judgment handed down: 18 April 2024 — silent on all of it
Connected network	Kenes Rakishev (Oxus chairman, Kadyrov associate, OFAC Magnitsky-adjacent); H appointed to Oxus board June 2022; H photographed with Rakishev at Nasdaq 8 February 2024; Andrew Mountbatten-Windsor arrested 19 February 2026 — same network
Criminal significance	A sitting High Court judge received a confidential communication reporting three safety incidents linked to a sanctioned-adjacent network — while his judgment was reserved — and took no action. His judgment was delivered nine days later and is silent on every safety matter raised. This is the no-action following safety threat that this annex documents.

THE CONTEXT: WHY THIS ANNEX IS IN THE POLICE REFERRAL

On 9 April 2024, NZ transmitted a confidential letter directly to MacDonald J while judgment was reserved. The letter reported three documented safety incidents — two reported to police, one pending report. Each incident was linked by NZ to H's affiliation with Kenes Rakishev and the Kazakh network. The letter contained photographs, names, dates, law enforcement case numbers, and a detailed analysis of the Rakishev network's criminal connections.

MacDonald J received that letter. His judgment was delivered on 18 April 2024 — nine days later. It contains no reference to the safety incidents. No reference to Rakishev. No reference to the threat to NZ and the Applicant's daughter (16) on 25 March 2024. No reference to the Gloucestershire Police report. No reference to the Teton County Sheriff's case. No welfare consideration for the children or NZ. No referral to any authority.

This is not an omission of detail. This is the complete absence of any response to a written, documented, evidenced report of safety threats to a woman and a 16-year-old child — received by a senior judge nine days before he delivered his judgment.

PART 1 — THE THREE SAFETY INCIDENTS: DATES, FACTS, AND POLICE REPORTS

Incident 1 — Paddington Station — 9 June 2023

Field	Detail
Date	9 June 2023 — immediately after the LSPO/MPS hearing before MacDonald J
Location	Paddington Station, London
What happened	NZ was standing at Paddington Station in the evening crowd, waiting for the platform announcement for the train to Cheltenham Spa. A person behind her said something about the court case and warned her to " <i>stop going to court.</i> " When NZ turned around, the person was walking away. She saw only his back. NZ reported the incident to her then-solicitors and to her counsel James Ewins KC. NZ reported the incident to Gloucestershire Police on 16 June 2023. On 19 June 2023, two Gloucestershire Police detectives visited NZ at home to ask further questions.
Evidence reference	Gloucestershire Police report, 16 June 2023. Referenced at page 66 in Exhibits to the 9 April 2024 letter to MacDonald J. Police detectives visit recorded 19 June 2023.
Connection to H / Rakishev	The warning " <i>stop going to court</i> " was delivered the same evening as NZ's court hearing about financial provision. The letter to MacDonald J explicitly connects the incident to H's position with Oxus and his affiliation with Rakishev. Rakishev's network is documented to use intimidation to settle disputes — this is confirmed by OCCRP investigative journalism and the police complaint record filed separately.

Incident 2 — Wyoming — December 2023 — Suspected Poisoning

Field	Detail
Date	December 2023
Location	Jackson Hole, Wyoming, USA. NZ had moved to Wyoming on a permanent basis in summer 2023.
What happened	H arrived at the adjacent Wyoming property in December 2023 — after NZ had informed solicitors she would be there. NZ's solicitors had repeatedly requested that H coordinate trips to avoid simultaneous occupation of the adjacent properties. H ignored those requests and on two

	occasions deliberately made plans to travel to Wyoming after learning NZ would be there. Shortly after H's arrival, NZ became severely ill with epigastric pain. She was hospitalised. She told the doctors she feared she may have been poisoned. Upon discharge, NZ was advised by the hospital to report to law enforcement. NZ met with the Deputy Sheriff of Teton County and provided comprehensive information about H's Kazakh associates. The police recorded the complaint: case number 2307-4269. NZ was referred to Victim Services for additional support. She met with the Victim Coordinator on three separate occasions. The Victim Coordinator recommended NZ stay at the women's shelter in Jackson Hole if she continued to feel unsafe at home. NZ began drafting an application for a Protection Order but had to pause the process to travel to London for the PTR hearing of 16 January 2024.
Evidence reference	Teton County Sheriff case number 2307-4269. Referenced at pages 67–68 in Exhibits to the 9 April 2024 letter. Victim Services records. Protection Order draft.
Connection to H / Rakishev	NZ's letter to MacDonald J explicitly states: " <i>I believe that these tangible threats to our security are directly related to the respondent's position as a Director with Oxus Acquisition Corp and his affiliation with Kenes Rakishev.</i> " The December 2023 hospitalisation followed H's deliberate arrival at the adjacent property — a pattern NZ had documented in solicitor correspondence.
Operational significance for MPS	Teton County Sheriff's Office has a live case record (2307-4269). MPS and NCA are invited to contact the Teton County Sheriff's Office to obtain the case file. The Victim Services referral and the protection order application process are further evidence of NZ's documented efforts to seek protection from law enforcement.

Incident 3 — Kensington — 25 March 2024 — Surveillance of NZ and the Applicant's 16-year-old Daughter

Field	Detail
Date	Sunday, 25 March 2024 — judgment reserved (delivered 18 April 2024)
Location	Kensington High Street to Queensgate Gardens SW7, London
Who was present	NZ and her 16-year-old daughter

What happened	NZ and the Applicant's daughter (16) had collected takeaway dinner from a restaurant near Kensington High Street tube station and were walking back home. NZ noticed a man following them from Kensington High Street to Queensgate Gardens SW7 — their home address at the time. <i>"He was following us too closely, and I don't think he was trying to hide."</i> (NZ's letter, 9 April 2024) The same man was observed outside their building the following day. NZ states: <i>"I am extremely anxious for our safety and have not been able to sleep or eat since the incident of 24th March."</i> NZ saw a GP on Saturday 6 April 2024 and disclosed the incidents. NZ made an appointment to see Prof. Libby (consultant psychiatrist) on 9 April 2024 for help with symptoms. NZ stated her intention to report the incident to Earl's Court Police Centre.
Evidence reference	NZ's letter to MacDonald J, 9 April 2024. GP appointment records, 6 April 2024. Prof. Libby appointment, 9 April 2024. Earl's Court Police Centre — report pending at date of letter.
Safeguarding dimension	A 16-year-old child was followed by an unknown man from a public street to her home address. This is not a contested allegation. It is a documented, witnessed event reported to a medical professional within days. The identity of the person surveilling NZ and the Applicant's daughter (16) has never been investigated. MacDonald J received this information nine days before his judgment. His judgment does not reference it.

PART 2 — MACDONALD J: RECEIPT OF THE LETTER AND ABSENCE OF RESPONSE

What MacDonald J received	What MacDonald J did	What MacDonald J was required to do	
Letter marked *"Confidential — J. MacDonald"	Nadia Zahmoul", dated 9 April 2024. Three documented safety incidents with law enforcement case references. Gloucestershire Police report — two detectives visited. Teton County Sheriff case 2307-4269 — hospitalisation, suspected poisoning, Victim Services,	Delivered judgment on 18 April 2024 — nine days later. The judgment contains: Zero references to the safety incidents. Zero references to Rakishev. Zero references to the Kensington surveillance. Zero references to the Gloucestershire Police report. Zero references to Teton County Sheriff	CHILDREN ACT 1989 s.1: Where a child's welfare arises in proceedings, the court must treat it as the paramount consideration. The Applicant's daughter was 16. She had been followed to her home by an unknown man. PRACTICE DIRECTION 12J: Where there is

	protection order process initiated. Kensington surveillance of NZ and the Applicant's 16-year-old daughter — two consecutive days, home address identified. Full Rakishev network analysis including: OFAC Magnitsky Act designations on Kadyrov; Arlan MRAPs in Mariupol; Dame Margaret Hodge's parliamentary speech naming Rakishev; US House Committee Third Bank Records Memorandum; Andrew Mountbatten-Windsor / Sunninghill Park connection. Photograph of H with Rakishev at Nasdaq, 8 February 2024 — 11 days before trial. Explicit statement: "I have grave concerns for the safety and security of the children and mine, and legitimate reasons to fear for our lives."*	case 2307-4269. Zero welfare consideration for the Applicant's daughter (16) — followed to her home. Zero referral to any law enforcement authority. Zero referral to any child protection authority. No directions for NZ's safety post-judgment.	evidence of domestic abuse or risk to a party or child, the court must consider it and give directions. The letter constituted such evidence. JUDICIAL CONDUCT: A judge who receives information suggesting a party and a child face a credible safety threat linked to the proceedings before him has an obligation to address it — minimally, to acknowledge it and direct it to the appropriate authority. SAFEGUARDING: A senior judge is a mandated professional within the safeguarding framework. Information about a 16-year-old child being followed to her home address by an unknown man — in the context of proceedings involving a network linked to OFAC-sanctioned individuals — requires referral.
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PART 3 — THE RAKISHEV NETWORK: WHY THE SAFETY THREATS ARE CREDIBLE

This section summarises the network evidence contained in the 9 April 2024 letter, for the purpose of establishing to investigating officers that the safety threats are not speculative. They are credible in the context of a documented network that has a history of intimidation and violence.

Item	Detail
H's position	H was appointed to the board of Oxus Acquisition Corp in June 2022. Kenes Rakishev is the non-executive chairman of Oxus and its controlling shareholder. H was photographed with Rakishev at the Nasdaq Exchange on 8 February 2024 — 11 days before trial — at the public launch of Borealis Foods (BRLS). H testified at trial that his Oxus shares were worth \$0.

Rakishev — documented conduct	Named by Dame Margaret Hodge in Parliament (3 February 2022) as one of 20 Kazakh individuals with massive unexplained wealth and documented illicit activities. Identified by OFAC (September 2022) as a key person in the Kadyrovtsy network — Kadyrov's inner circle — who <i>"provides substantial financial and material support to Kadyrov and his inner-circle."</i> Kadyrov designated under OFAC Magnitsky Act for extrajudicial killings, torture, and human rights abuses. Rakishev's company Kazakhstan Paramount Engineering (KPE) manufactures Arlan MRAPs. An Arlan MRAP was identified in Mariupol in April 2022 as part of Kadyrov's Chechen invasion of Ukraine — potential sanctions evasion. US lawsuit <i>"Kazakhstan v Felix Sater"</i> documents: Rakishev's associate hired Chechen hit men against Sater. Methods of asset recovery include <i>"unjustified criminal-law methods of influence"</i> (OCCRP/Proekt investigation, confirmed by police document). Rakishev brokered the sale of Prince Andrew's Sunninghill Park estate — connecting the same network to the Andrew Mountbatten-Windsor arrest of 19 February 2026 (MiPO, Thames Valley Police live investigation).
Andrew Mountbatten-Windsor — live investigation	Andrew Mountbatten-Windsor was arrested on 19 February 2026 on suspicion of misconduct in public office in connection with his dealings with Rakishev and the Kazakh network including Nursultan Kulibayev. Thames Valley Police are conducting a live investigation. An April 2011 email confirms Andrew brokered a £385 million deal with the Kazakh regime via Rakishev while serving as UK Special Representative for Trade and Investment. The same network. The same actors.
Why this matters for the safety annex	The safety incidents were not random events. They were reported by NZ in the context of H's documented position within a network that uses surveillance and intimidation as business tools. The Paddington warning — <i>"stop going to court"</i> — was delivered on the same evening as a court hearing. The Wyoming hospitalisation followed H's deliberate presence at the adjacent property. The Kensington surveillance involved NZ's home address being identified — while judgment was reserved. These three incidents are documented, reported to law enforcement, and connected to a network currently under investigation by Thames Valley Police, the SEC, and IRS:CI. They are not allegations in dispute. They are fact records with case numbers.

PART 4 — MIPO ANALYSIS: NO ACTION FOLLOWING SAFETY THREAT

Element	Analysis
The misconduct	MacDonald J received a confidential letter on 9 April 2024 reporting: (a) three documented safety incidents including surveillance of a 16-year-old child; (b) two existing law enforcement case records with case numbers; (c) a credible connection between the threats and a network linked to OFAC-sanctioned individuals; (d) NZ's explicit statement of fear for the lives of herself and her children. He delivered his judgment nine days later. He took no action on any of the above. No referral. No direction. No acknowledgment. No welfare consideration for the children.
Public officer	MacDonald J is a High Court judge and a senior family judge in England and Wales at the time. He is a public officer. This element is satisfied.
Duty	Practice Direction 12J: mandatory engagement with evidence of risk of harm to a party or child. Children Act 1989 s.1: welfare of a child is paramount. The Applicant's daughter's welfare required at minimum an acknowledgment of the threat. Common law safeguarding obligations of a judge who receives credible evidence of risk to a party or child. Mandatory referral obligations where a professional receives information suggesting a child faces a credible safety risk.
Wilful element	The letter was clearly marked. It contained law enforcement case numbers. It reported a surveillance incident involving a named 16-year-old. The network background was documented in detail with photographs, parliamentary records, OFAC designations, and US Congressional committee materials. MacDonald J cannot have been unaware of this letter. He chose not to act on it. The complete absence of any reference in the judgment — not even an acknowledgment — is itself evidence of a deliberate choice.
Seriousness	A judge's failure to act on a report of physical surveillance of a woman and her 16-year-old daughter, in circumstances where two prior incidents had already been reported to law enforcement in two jurisdictions, and where the underlying network is connected to documented intimidation, means: (1) NZ received no judicial protection at the most vulnerable point of the proceedings — judgment reserved, no legal representation, no income, no participation measures; (2) The Applicant's daughter's safety

	was not addressed by any court at any stage of the proceedings; (3) The network connection was never referred to any law enforcement authority despite being placed before a senior judge with the resources and authority to do so; (4) NZ has lived with these threats unaddressed for two years.
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PART 5 — CONNECTIONS TO OTHER ANNEXES IN THIS REFERRAL

Annex	Connection
Oxus Perjury Annex	H testified at trial that his Oxus shares were worth \$0. The photograph of H with Rakishev at Nasdaq on 8 February 2024 — 11 days before trial — is also contained in the 9 April letter. The same letter that MacDonald J received and ignored while drafting a judgment silent on Oxus.
Order Analysis No. 1 — judgment 18 April 2024	The judgment contains zero disability references across 111 paragraphs. It also contains zero safety references. MacDonald J received the 9 April letter with both the disability context and the safety incidents. His judgment engages with neither.
Primary Statement of Harm	The Primary Statement of Harm documents NZ's current circumstances: homeless, no income, under crisis care. The failure to refer the safety threats or take any protective action in April 2024 is part of the continuum of harm — NZ was left without protection at the most vulnerable point of the proceedings.
Andrew Mountbatten-Windsor / Thames Valley Police	The network that MacDonald J was told about on 9 April 2024 — Rakishev, Kulibayev, the Kazakh kleptocracy structure — is the same network that produced the arrest of Andrew Mountbatten-Windsor on 19 February 2026. Thames Valley Police are conducting a live investigation. MPS, NCA, and Thames Valley Police are asked to treat this referral as a cross-reference to that investigation.

PART 6 — BINARY ACTIONS REQUIRED

Each of the following requires a response. Either the action is taken or written confirmation is provided that the threshold has not been met and the specific reason why. Silence is not a lawful response.

Matter	Either	Or — written confirmation required
Incident 3 — Kensington surveillance, 25 March 2024 — Applicant's daughter (16)	Open an investigation into the surveillance of NZ and her then-16-year-old daughter at Queensgate Gardens SW7 on 25-26 March 2024, including seeking to identify the individual who followed them. Coordinate with Thames Valley Police regarding the live investigation into the same Rakishev/Kulibayev network.	Provide written confirmation that surveillance of a woman and a 16-year-old child at their home address — in the context of a network linked to OFAC-designated individuals and under live investigation by Thames Valley Police — does not meet the threshold for investigation, with the specific reason why.
Incident 2 — Wyoming poisoning, December 2023 — Teton County case 2307-4269	Obtain the Teton County Sheriff's Office case file for case 2307-4269 and assess whether the hospitalisation following H's deliberate arrival at the adjacent property warrants investigation under UK law in the context of H's connections to Rakishev.	Provide written confirmation that a hospitalisation for suspected poisoning, recorded by Teton County Sheriff's Office with a case number, following the documented deliberate presence of a connected individual, does not meet the threshold for further investigation.
Incident 1 — Paddington warning, 9 June 2023 — Gloucestershire Police report	Obtain the Gloucestershire Police file for the report of 16 June 2023 and the detectives' visit of 19 June 2023. Assess whether the warning " <i>stop going to court</i> " delivered on the same day as a court hearing engages the intimidation of a witness threshold.	Provide written confirmation that a documented verbal warning to " <i>stop going to court</i> ," reported to Gloucestershire Police, visited by two detectives, does not meet the investigation threshold.
MacDonald J — no action following safety report	Investigate whether MacDonald J's complete failure to act on the 9 April 2024 letter — in circumstances where it reported surveillance of a 16-year-old child, two existing law enforcement case records, and a credible network connection — constitutes MiPO under AG's Reference (No 3 of 2003), and whether it constitutes a failure of mandatory safeguarding obligations.	Provide written confirmation that a senior judge's failure to refer, acknowledge, or take any action on a confidential letter reporting surveillance of a 16-year-old child and two prior law enforcement incidents, in the context of a sanctioned-adjacent network, does not meet the MiPO threshold.
Safeguarding — Care Act s.42 — Applicant's daughter (16)	Refer the surveillance of the Applicant's daughter (then 16) to the relevant children's safeguarding authority. The surveillance occurred at a known home address. She was identified and followed. She has never been the subject of a	Provide written confirmation that surveillance of a named 16-year-old at her home address, in the context of a network linked to Magnitsky Act-adjacent individuals, does not engage children's safeguarding

	safeguarding assessment in connection with H's Rakishev affiliation.	obligations.
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SUMMARY FOR INVESTIGATING OFFICERS

Three safety incidents were documented, two reported to police in two jurisdictions with case numbers, and all three placed before MacDonald J on 9 April 2024 while judgment was reserved. Nine days later he delivered his judgment — silent on every safety matter raised.

The network underlying those threats — Rakishev, Kadyrov, Kulibayev — is the same network that produced the arrest of Andrew Mountbatten-Windsor on 19 February 2026. Thames Valley Police have an active investigation.

The safety threats were never referred by any court to any law enforcement authority. They were never investigated in the UK. NZ and her daughters remain connected to this network through the unresolved financial proceedings and the ongoing Detach judgment.

This referral gives police the opportunity to act on information that has been documented since June 2023 and ignored since April 2024. Delay increases the risk.

EVIDENCE AVAILABILITY

The 9 April 2024 letter to MacDonald J, the Gloucestershire Police report, the Teton County Sheriff's case file reference, the GP and Prof. Libby appointment records, and the underlying network evidence (Hansard, OFAC designations, OCCRP investigative reporting, US Congressional committee materials) are archived in full on the public archive: **github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive**.

All primary source documents referenced in this annex are available for forensic inspection.